

CROCKER v. CALAVERAS COUNTY

21CV45343

DEMURRER TO PETITION

This is a civil action for breach of an alleged contract. Plaintiff has commenced three, nearly-identical civil actions here in this Court, as follows:

- 21CV45342: petition to confirm alleged arbitration award against Calaveras County Health and Human Service – Child Protective Services (using Judicial Council form)
- 21CV45343: breach of contract against Calaveras County Health and Human Service – Child Protective Services for not honoring an alleged agreement to reverse course in 21JD6338 and/or submit the juvenile dependency dispute to arbitration
- 21CV45540: petition to confirm alleged arbitration award against Calaveras County Health and Human Service – Child Protective Services (not using Judicial Council form)

On 04/15/22, this Court entered an order sustaining without leave to amend the County's demurrer to the respective operative pleading in both 21CV45342 and 21CV45540. This Court found that the absence of an arbitration agreement, a serious concern regarding the authenticity of the alleged award, and the juvenile court's exclusivity rendered the petitions incapable of bona fide cure through amendment. Petitioner has appealed those orders (see C096133).

In this remaining action, the County contends that plaintiff's breach of contract claim is both uncertain, and as alleged fails to state a cause of action.

A demurrer for uncertainty lies if the essential facts upon which a determination of the controversy depends are not easy to discern from the allegations made. (See *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; *Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.)

A demurrer for failure to state a cause of action is sustainable if it appears that plaintiff is not entitled to any relief. In other words, a general demurrer for failure to state will not succeed if the pleading states, however inartfully, facts disclosing some right to relief. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714; *Wittenberg v. Bornstein* (2020) 51 Cal.App.5th 556, 566; *Weimer v. Nationstar Mortgage, LLC* (2020) 47 Cal.App.5th 341, 352.)

The pleadings in this matter (as in the related actions) tend to be difficult to decipher, if not entirely incoherent. The operative pleading here is no different. Plaintiff addresses such anomalies as ex post facto laws, the Treaty Clause, an oath of office “accepting” this Judge’s appointment to the bench, a manufactured “affidavit of show of cause,” 18 U.S.C. §242, judicial conflicts under CCP §170.1, the Social Security Act, grandparent visitation rights, and finally an alleged agreement with the County to pay plaintiff \$1M plus \$10,000/day until the juvenile court returns his daughter.

Regarding the latter averment, to plead a viable cause of action for breach of contract, it is necessary to show: (1) parties capable of contracting, (2) mutual consent, (3) a lawful object, (4) sufficient cause or consideration, (5) plaintiff’s performance or excuse for failure to perform, (6) defendant’s breach, and (7) damage. (Civil Code §§ 1550, 1605; *Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 453; *Gomez v. Lincare, Inc.* (2009) 173 Cal.App.4th 508, 525.) In determining whether a breach is material, trial courts consider (1) the extent to which the injured party will obtain the substantial benefit bargained for, (2) the extent to which the party failing to perform has already partly performed or made preparations for performance, (3) the greater or lesser hardship on the party failing to perform, and (4) the greater or lesser uncertainty that the party failing to perform will perform the remainder of the contract. Courts weigh the purpose to be served, the desire to be gratified, the excuse for deviation from the letter, and the cruelty of enforced adherence. In other words, whether a partial breach of a contract is material depends on the importance or seriousness thereof and the probability of the injured party getting substantial performance. (See *Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, 1602-1603; *Brown v. Grimes* (2011) 192 Cal.App.4th 265, 278; in accord, *NIVO 1 LLC v. Antunez* (2013) 217 Cal.App.4th Supp. 1, 5.) Precision or *in haec verba* is not required, nor is attaching the actual contract if in writing. Pleading the legal effect (i.e., enough facts to show actionable breach of an enforceable agreement) is good enough. (*Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 401-402.)

The pleading is uncertain because plaintiff has attached and incorporated therein an Application to Stay Proceedings Pending Arbitration. This Court can take judicial notice of the fact that plaintiff contends he already completed arbitration, and that the arbitrator made an award in his favor. Since the alleged contract between the parties allegedly included an arbitration clause, and plaintiff has elected his remedy by pursuing relief in the arbitral forum, this civil action for breach of the contract (i.e., refusing to arbitrate) is now subject to abatement. It may be that plaintiff is referring to a different contract, but it cannot be determined from the pleading. To make matters more cumbersome, plaintiff has not filed any opposition to the demurrer, which generally connotes a declaration from the pleader that he or she has done the best they can. At the very least plaintiff is not asking for leave to amend.

Demurrer **sustained without** leave to amend. The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Judgment pursuant to Rule of Court 3.1312 in conformity with this ruling.

BARR v. COUNTY OF CALAVERAS

18CV42976

DEFENDANT'S MOTIONS FOR SUMMARY ADJUDICATION

This is an employment dispute, based principally on the theory that plaintiff was retaliated against after blowing the whistle on department irregularities, and ultimately denied a promotion which he was allegedly qualified for. Before the Court this day are more defense motions for summary adjudication.

Brief Overview of the Case

Plaintiff was employed by defendant as a Code Enforcement Officer from 2001 through 2016, and thereafter as a Senior Code Enforcement Officer, until he voluntarily resigned from the County in August of 2017. During the latter two years of his tenure with the County, he twice applied for the position of Building Official, which was considered a professional promotion from code enforcement. Although plaintiff had performed many of the duties associated with the Building Official position, the County considered his experience to be inadequate for the position. Although plaintiff was of the opinion that certain individuals harbored a grudge against him for reporting department, he pointed specifically at the County's refusal to consider his military service as a functional equivalent. Nevertheless, plaintiff participated in a panel interview, but was not selected. Plaintiff left the County, and secured a position as Building Official in a neighboring county, reportedly making more money.

Current Procedural Posture

On 01/07/22, this Court issued a lengthy tentative decision granting in part, and denying in part, defendant's earlier motions for summary adjudication. After oral argument, and consideration of plaintiff's post-hearing objections, this Court adopted the tentative and entered an order summarily adjudicating in defendant's favor the following causes of action:

- The 1st COA for FEHA (Retaliation);
- The 2nd COA for FEHA (Failure to Prevent Retaliation);
- The 8th COA for Negligence Per Se;
- The 9th COA for Intentional Infliction of Emotional Distress;
- The 10th COA for Negligent Infliction of Emotional Distress;
- The 11th COA for Promissory Estoppel;
- The 13th COA for Breach of Implied Covenant of Good Faith and Fair Dealing;
- and
- The 14th COA for Common Count.